

21STCV44465 21STCV44465

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C07%2F21%2F2026

Source SHA-256: 9f1914b4c01ed8f9524a0cc5b02472978b920acea52dd3fe0177416e994887b7

Case Number: 21STCV44465 Hearing Date: July 21, 2026 Dept: 407

Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July
21, 2026

CASE: U.S. Bank National Association, As Trustee for Velocity
Commercial Capital Loan Trust 2019-3 v. Sannette Gite, As Trustee of the Vaughn
Family Trust, et al.

CASE NO.: 21STCV44465

DEFENDANTS

MATTHEW MARK AND CHARMAINE MARK AS TRUSTEES OF THE USRE TRUST'S EX PARTE
APPLICATION FOR AN ORDER DISSOLVING TEMPORARY RESTRAINING AND STAY ORDERS

I. INTRODUCTION

Defendants

Charmaine Mark and Matthew Mark as Trustees of the USRE Trust applies ex parte for an order (1) dissolving the Court's Temporary Restraining Order restraining the Mark Defendants from foreclosing on the subject Property and/or alternatively (2) lifting any stay of foreclosure on the subject Property. If the Court is unwilling to grant the foregoing relief, then at the very least, and in the alternative, the Mark Defendants would request that a noticed hearing and briefing schedule be set for a motion to dissolve the TRO or lift the stay of foreclosure.

For the reasons stated herein, each
Ex Parte Application is GRANTED IN PART.

II. DISCUSSION

Pursuant
to Code of Civil Procedure section 166(a)(4), the court rules on Defendant's Ex
Parte Applications in chambers.

“
‘A court will not grant ex parte relief ‘in any but the plainest and most
certain of cases.’ (People ex rel. Allstate Ins. Co. v. Suh (2019)
37 Cal.App.5th 253, 257.) Substantively, ‘[a]n applicant must make an
affirmative factual showing in a declaration containing competent testimony
based on personal knowledge of irreparable harm, immediate danger, or any other
statutory basis for granting relief ex parte.’ (Cal. Rules of Court, rule
3.1202(c) ‘A trial court should deny an ex parte application absent the
requisite showing.’ (People ex rel. Allstate Ins. Co., at p. 257.)” (Newsom
v. Superior Court (Sutter County) (2020) 51 Cal.App.5th 1093.)

Here,
Defendants do not demonstrate the requisite showing of irreparable harm or
immediate danger to merit ex parte relief. However, the court
acknowledges that the status of this case has changed such that dissolution of
the temporary restraining order may be warranted. The court will set a hearing date.

III. CONCLUSION

For
the forgoing reasons, Defendants' ex parte
application is Granted in Part. The
court sets a hearing date for August 18, 2026 to hear Defendants' motion for
dissolution of the temporary restraining order. The court deems Defendants ex parte
application and Plaintiff/Cross-Defendant Sanette Gite's opposition as the
moving papers and opposition respectively.
Defendants may file a reply no later than August 7, 2026.

The clerk of the court to give notice.

Dated: July 21, 2026

Brock T. Hammond

Judge of the
Superior Court